RUSTNUTS

SOCIAL MOTORCYCLE CLUB INCORPORATED

CONSTITUTION

& MEMBER QUICK REFERENCE

VERSION 4

FINAL CLUB EDITION

INTERNAL CLUB BYLAWS

**ONE CLUB. ONE INTERNAL CONSTITUTION.
MULTIPLE CHAPTERS.**

CLUB-APPROVED FINAL EDITION

This document contains the Club's internal bylaws. It does not amend or replace the rules registered with Consumer Affairs Victoria and is not a CAV-approved replacement rulebook.

STATUS AND PURPOSE

This complete v4 consolidates the 2 August 2026 v3 draft, the recorded August patch and licence choices, the authorised review recommendations, and the distinction between Association governance and internal Club operations. The familiar Constitution title is retained for members.

Applicable law and the Registered Rules take priority. Club patch status, riding standards, internal roles and operating arrangements are governed here only within lawful authority. The separate CAV rulebook remains unchanged.

Document control	Details
Legal name	Rustnuts Social Motorcycle Club Incorporated
Incorporation / ABN	A0119901K | ABN 13 188 715 331
Financial Year	1 July to 30 June
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Approval / commencement	As recorded in the Club's adoption resolution; the publication date is not the commencement date.

PART A - MEMBER QUICK REFERENCE

SUMMARY ONLY

Part B controls if this summary differs. Registered Rules and law take priority over both. "Member" and "vote" must be read in the correct internal or Association context.

Two rulebooks, two kinds of decision

The CAV Registered Rules govern Association membership rights, statutory committee appointments, the legal AGM, proxies and formal membership discipline. This Constitution governs internal patch progression, chapter roles, activities and conduct within authorised powers.

FNG progression

A nine-month minimum; six-month feedback; formal review at twelve months if not admitted. Continuation uses rolling three-month reviews and a one-time 50% annual-fee continuation charge. Full patch approval still requires every eligible Home Chapter Full Member to vote in favour.

FNG attendance

At least 50% of each designated category separately: rides, ordinary meetings and other events. Use activities actually held during the trial after approved exemptions. Publish and classify them in advance; no retrospective additions or double counting.

Full Member attendance

At least 80% of eligible ordinary monthly Home Chapter meetings and two applicable Big 4 rides. Separate Annual Chapter Meetings and cancelled or exempt meetings do not inflate the count. A part-year Full Member needs no more than the qualifying rides remaining, capped at two.

Club voting and legal rights

FNGs and Supporters do not vote on internal Club business. Full Members vote on chapter and national Club business; Nomads vote on national Club business only. Legal Association voting rights are checked separately. A Club label alone cannot remove them.

Club-issued ride patches

Member choice of the bottom of the front Club Side, lower-left rear Club Side, or inside lining. One location for each patch unless duplication is specifically approved. External patches on the rear Supported-Ride Side require the approvals in Section 6.

Personal patches and identity patches

No prior Board approval for personal patches on the front Personal Side, but the stated removal grounds and fair process apply. One set of Club membership identity patches is issued. Private reproduction and unapproved identity alterations remain prohibited.

QUICK REFERENCE - SAFETY, ROLES AND DECISIONS

Licence, registration and fitness

When operating a motorcycle on a road or road-related area in Club uniform, hold the required licence and use a lawfully registered or permitted, roadworthy motorcycle, whether or not on a Club ride. Passengers and lawful alternative transport are not prohibited. Do not operate impaired in an Official Club Activity.

Immediate ride-safety authority

Road Captain -> Sergeant-at-Arms -> Vice President -> President -> NEC. Do not undermine an active direction while the group is moving. Precautionary directions do not require proof of intoxication, and officers have no police powers.

Internal positions

Keep two-year internal elected terms and the two-year Full Membership eligibility requirement, subject to existing NEC waivers. Nomads cannot hold Chapter Board or internal NEC office but may hold Non-Board roles. Internal titles do not appoint anyone to the statutory Association Committee.

Chapter Board decisions

One ordinary vote per distinct person, even when two roles are combined. Internal Board quorum is a majority of eligible holders, with at least three participating. Conflicted people do not decide their own matter. Use an authorised impartial fallback if needed.

Meetings and minutes

Distinguish internal chapter/national meetings from the statutory Association AGM or general meetings. Internal chapter proxy voting remains prohibited; Association proxies follow the Registered Rules. Circulate draft minutes within seven days and confirm accuracy at the next applicable meeting.

Money

Keep chapter records separate but consolidate Association accounts. Use two authorised approvers other than the payee. Deposit money within five working days. Chapter budgets remain Board-approved within delegated limits, with reports to members. No blanket external annual audit is added.

Reviews and formal disciplinary appeals

Internal patch, ride and non-disciplinary status reviews: request within fourteen days of written notice; three impartial people hear it. Formal Association suspension or expulsion: the registered appeal deadline is seven days after the vote and the appeal meeting is due within twenty-one days of receipt.

Changing this internal Constitution

Internal amendment process: NEC review, full text on twenty-one days notice, then at least two-thirds of internal national votes cast with normal quorum. Necessary Association approvals and written authority are separate. This is not the statutory CAV rule-change process and cannot authorise v4 adoption retrospectively.

PART B - FULL CONSTITUTION

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How to read this document

The existing seventeen-section structure is retained. New suffix clauses preserve useful existing references. Section 2 defines the legal/internal distinction; Sections 10, 11, 14 and 16 apply it to meetings, authority, discipline and amendments. Schedule 1 is the selected ride-patch layout, not a new logo or patch design.

1. NAME, STRUCTURE AND OBJECTIVES

1.1. The registered name of the incorporated association is Rustnuts Social Motorcycle Club Incorporated, incorporation number A0119901K (the Association or Club). The Association's ABN is 13 188 715 331.

1.2. The Club is one Victorian incorporated association operating through internal chapters. Its legal governance is set by the Registered Rules. This document is the Club's internal bylaws, known to members as the Rustnuts Constitution. It does not replace or amend the Registered Rules. A chapter is not a separate legal entity and does not separately own Club money, property, contracts, liabilities or intellectual property.

1.3. The Club is a family-oriented social motorcycle club built around motorcycling, fellowship, loyalty, mutual support, safe and responsible riding, community involvement and respectful engagement with other motorcycle clubs.

1.4. The Club exists to:

- promote the enjoyment of motorcycling and safe, responsible riding;
- foster friendship, fellowship and support among members and their families;
- support charities, community events and positive motorcycle culture;
- participate in rides, rallies and events; and
- protect the reputation, identity, property and long-term strength of Rustnuts SMC.

1.5. The Club motto is "Rust till Dust". These rules make expectations clear and protect the Club without removing the enjoyment, identity or culture of being bikers.

1.6. The income and property of the Association must be applied solely towards promoting its purposes. No portion may be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise, to any member. This does not prevent payment in good faith of reasonable remuneration for services actually rendered to the Association, or reimbursement of expenses properly incurred on the Association's behalf.

1.7. The Association is not required to maintain a clubhouse or fixed Club premises. Any acquisition, lease or continuing use of premises for Club purposes requires NEC consideration and approval by the Association Committee, or a person expressly authorised by its written delegation. It must be held, contracted and administered in the Association's name.

2. DEFINITIONS AND INTERPRETATION

Term	Meaning
Active Chapter	An internal chapter recognised by the NEC within lawful Association authority.
Association / Club	Rustnuts Social Motorcycle Club Incorporated, A0119901K: the single legal entity responsible for its funds, assets, contracts and statutory reporting.
Registered Rules	The Association rules held by CAV; the supplied baseline is Rules-A0119901K (2) (1).pdf, a 25-page model-rules document personalised for Rustnuts. Any later legally effective version takes priority.
Association Committee	The legal governing committee elected or appointed under Part 5 of the Registered Rules. It is not automatically the NEC or a Chapter Board.
Association Secretary / Treasurer	The holders of the legal offices under the Registered Rules, distinct from internal national and chapter titles unless properly appointed to both.
Association Voting Member	A legal member entitled to vote under Registered Rule 13 and other applicable rules, including subscription and suspension provisions.
Big 4 Ride	An activity designated prospectively as an applicable principal annual Club-only ride.
Chapter Board	The internal local Executive Board: Chapter President, Vice President, Secretary, Treasurer, Sergeant-at-Arms and Road Captain.
Chapter Board Position	One of those six internal offices. A distinct person has one ordinary Board vote regardless of combined duties.
Chapter Compass Ring	The Club-issued chapter or approved-status identifier forming part of the membership-patch assembly.
Club Position	An internal Chapter Board, Non-Board or NEC office authorised by this Constitution.
Club Year	From the close of one Association AGM to the close of the next, unless a prospective internal transition period is recorded without changing the Financial Year.
Financial Year	1 July to 30 June.
FNG / Trial Member	A person approved for internal probationary Club status. Legal Association admission and associate status are recorded separately.
Full Member	A fully patched person assigned to an Active Chapter, with the internal rights in this Constitution.
Good Standing	For internal Club purposes: not validly restricted, current with authorised dues or a valid arrangement, and not overdue in returning Club property or accounting for Club funds. It does not independently determine legal Association voting rights.
Home Chapter	The Active Chapter recorded for internal Club administration; the legal member register separately records Association status.
NEC	The internal National Executive Committee, with authority limited as stated in Section 11 and lawful written delegations.
National Chairperson / Chairman	The one internal national office; these titles do not create separate positions or automatic statutory office.
Nomad Member	A patched person living where no Active Chapter is reasonably available, assigned to a nominated chapter. Internal votes are national only; no Chapter Board or NEC office, but Non-Board roles are available.
Non-Board Club Position	An Officer, Tail Gunner, Social Media Officer or approved support role. No Board vote or legal authority arises solely from the title.
Official Club Activity	A ride, meeting, event or activity authorised or promoted by a Chapter Board or the NEC within their lawful authority.
Road Rules	The separate controlled Club group-riding rules approved under Section 7.
Special Resolution	A legal Association resolution under the Registered Rules and applicable law. It is not the two-thirds internal amendment vote in clause 16.3.
Supporter Member	An internal recognised supporter without Full Membership privileges. Legal associate-member status is separate and must be established lawfully.

Term	Meaning
Club Voting Member / Voting Member	For internal decisions: a Full Member or Nomad in Good Standing, with the topic limits in clause 10.7. Where the matter is an Association decision, use legal Association eligibility instead.

2.1. "Must" is mandatory and "may" gives discretion to the named person or body. Written internal notices may be delivered personally, by post to the recorded notice address, or by email to the recorded email address. Another electronic method may be used for internal Club notices where the recipient has agreed to it and delivery can be recorded. A general chat post alone is not individual notice. Notices under the Registered Rules must use the methods and timing those rules require. The Secretary records delivery and follows up a failed delivery; this Constitution does not invent a deemed-receipt date.

2.2. The order of authority is: applicable law; the Registered Rules and lawful decisions and delegations made under them; this internal Constitution; a valid NEC national policy; a compliant chapter bylaw or policy; then an operational procedure or direction. A lower document cannot override a higher authority. A valid NEC policy prevails over a chapter policy within the NEC's authorised scope.

2.3. A reference to a Club status, Club vote, Chapter Board or NEC office is internal unless expressly stated otherwise. Association membership, legal voting rights, the statutory committee, Association general meetings and formal membership discipline remain governed by the Registered Rules. Different internal terminology does not remove those rights or transfer those powers.

2.4. Where a percentage specifies a minimum number of people or attendances, use the smallest whole number that meets it. A majority means more than half, not merely half. Identify the denominator stated in the clause: all eligible holders, people present and eligible, votes cast, or eligible activities. Abstentions are not votes cast. For example, 80% of nine eligible meetings requires eight attendances, 50% of nine requires five, and a majority of six Board members requires four. Unanimous Full Membership approval still requires every eligible Home Chapter Full Member to vote in favour.

2.5. The Association Committee must keep a written record of the powers and limits delegated to the NEC, Chapter Boards and other bodies under Registered Rule 43. Internal titles alone do not confer Association authority. A delegate cannot further delegate the Association's power of delegation or a duty imposed by law on the Association Committee. When authority is absent or unclear, refer the matter to the Association Committee instead of assuming it.

3. MEMBERSHIP CATEGORIES AND ELIGIBILITY

3.1. FNG, Full Member, Nomad Member and Supporter Member describe internal Club status. Each is assigned a Home Chapter. The Association member register must separately record legal admission and any valid associate-member category. Admission, legal eligibility and legal membership rights are governed by Registered Rules 8-18; applying for Association membership is not conditional on completing the Club's patch-progression process. A person in the Introduction Phase is an invited participant unless separately admitted to the Association.

3.2. To enter riding membership as an FNG, a person must be at least 18, support the Club's objectives and values, hold a motorcycle licence other than a learner permit that permits independent road and highway riding in their state or territory, and own or regularly access a highway-capable motorcycle. A person who is legally required to wear a high-visibility vest or jacket because they hold a motorcycle learner permit is not eligible to become an FNG until that requirement no longer applies.

3.3. A Supporter Member need not hold a motorcycle licence or motorcycle. Any Supporter who rides in an Official Club Activity must be legally entitled, properly equipped and fit to participate under Section 7.

3.4. Annual subscriptions, joining fees, their setting process and payment dates must be determined through Registered Rule 12. Chapter Boards may propose and administer chapter amounts within the process authorised by the Association AGM and any valid national fee policy; they cannot independently override it. A Treasurer may administer a payment arrangement only within that authority. An informal instalment arrangement does not itself override the legal effect of Registered Rule 12(4).

3.5. Internal patch, riding, office and activity privileges depend on Club status, Good Standing, attendance, safety directions and valid restrictions under this Constitution. They do not determine whether someone can exercise Association membership rights. Legal rights may be restricted only through the Registered Rules and applicable law.

3.6. The Association must maintain the minimum membership required by law and its Registered Rules. Association notice, attendance, voting and nomination rights follow those rules. In particular, additional non-voting associate-member categories require a special resolution under Registered Rule 14(1)(b). FNG or Supporter labels alone do not establish legal non-voting status. No existing Association voting right may be removed merely by adopting this Constitution or changing a Club label.

3.7. Membership does not make a member personally liable for the debts or obligations of the Association. A member remains responsible for membership fees, approved personal activity costs, damage or loss caused by that member, and their own legal obligations.

3.8. Use of Club venues, vehicles, equipment, facilities, assets and activities is subject to membership class, availability, safety, insurance, any applicable fee and valid Board or NEC approval. Membership alone does not create an unrestricted right to use Club property or facilities.

4. INTRODUCTION, APPLICATION AND FNG PROGRESSION

4.1. A Full Member, Nomad Member or FNG may recommend a person for the Introduction Phase. A recommendation does not guarantee acceptance.

4.2. The Introduction Phase normally lasts three months. The person must be added to the approved communication platform, attend at least two official Club meetings, attend at least one ride organised by a Club member, and be considered safe and suitable to enter the formal process.

4.3. The Chapter Board may extend the Introduction Phase where the minimum activities are incomplete or more time is reasonably needed. Completion of the minimum activities does not create a right to membership.

4.4. After the Introduction Phase, the person may apply in writing to the Chapter Secretary for internal FNG status. The Board may make reasonable and confidential suitability enquiries for a legitimate Club or safety purpose. A separate Association membership application must be signed and dealt with under Registered Rules 9-11 as soon as practicable; it must not be held pending completion of an internal trial.

4.5. The Chapter Board may approve internal FNG status by simple majority. The relevant Club Secretary records that status. The Association Committee separately decides Association admission under Registered Rules 9-11 and its Secretary maintains the legal member register. A written delegation may authorise eligible administrative work but does not dispense with the approval required by those rules. Every applicant for Club patch progression follows the same process regardless of family, friendship or previous Club relationships.

4.6. The FNG pathway has a nine-month minimum before Full Membership can be granted, with a formal review at twelve months if Full Membership has not been approved. FNGs cannot vote on internal Club matters or hold internal Club office. They must attend at least 50% of each designated category separately: rides, ordinary chapter meetings, and other events. Only activities held during the person's trial count, subject to approved exemptions. A category with no eligible activities creates no attendance shortfall. The Board sets the designated list at the start of each Club Year and supplies it on entry; an activity must be classified in advance and not double-counted. Changes apply prospectively only. Association voting rights are governed by clause 3.6.

4.7. The Board should conduct a six-month feedback review and may consider Full Membership from nine months. Full Membership cannot be granted before nine months.

4.8. When the Board confirms eligibility, the Chapter President must conduct a confidential vote and give every eligible Full Member of the Home Chapter a reasonable opportunity to vote. If the President is unavailable or conflicted, the National Chairperson conducts it.

4.9. Full Membership requires 100% approval: every eligible Full Member of the Home Chapter must cast a supporting vote. Only the final outcome is recorded. A non-approval must be based on a genuine Club-related concern privately explained to the vote administrator; individual votes remain confidential and no voter can be compelled to change their vote.

4.10. If Full Membership is not approved by twelve months, the Board must review the trial within fourteen days and either continue FNG status through rolling three-month reviews, offer or confirm Supporter status, or end the internal trial. Twelve months is not an automatic maximum. Ending a trial does not by itself end Association membership; any such action must follow the Registered Rules.

4.11. To continue as an FNG after twelve months, the person must pay a one-time continuation fee equal to 50% of the applicable annual membership fee, established through the authorised fee process in clause 3.4. It is paid once, not at each three-month review. Payment does not guarantee Full Membership.

4.12. The Board may grant reasonable time or attendance relief for injury, work, family, distance, breakdown, accident, theft or another genuine circumstance. Approved use of a chapter support or recovery vehicle for up to three months counts as participation.

5. MEMBERSHIP OBLIGATIONS, ATTENDANCE AND STATUS

5.1. A Full Member in Good Standing may vote on internal chapter and national Club matters, hold eligible internal office, recommend applicants and participate in Club-only activities, subject to this Constitution. Association voting and office eligibility are determined separately under the Registered Rules.

5.2. To retain internal Full Membership, a member must: (a) attend at least 80% of eligible ordinary monthly Home Chapter meetings during the Club Year, in person or by approved live technology; (b) attend at least two applicable designated Big 4 rides, subject to clause 5.11; and (c) pay authorised dues or comply with a valid payment arrangement. Only ordinary meetings held while the person holds Full Membership count; cancelled meetings, special meetings, separately held Annual Chapter Meetings and approved exempt meetings do not. An Annual Chapter Meeting combined with an ordinary meeting counts once. Except for the applicable Big 4 requirement, no other ride or event attendance is required to retain Full Membership. FNG attendance is governed separately by clause 4.6.

5.3. Approved live electronic attendance at an ordinary monthly chapter meeting counts. An approved exemption removes the affected meeting from the attendance calculation.

5.4. Big 4 eligibility is separate from annual retention. Before a Big 4 ride, an FNG, Full Member or Nomad Member must have attended at least two of the three most recent official meetings of the Home or nominated chapter, in person or by approved live technology, unless the Board grants an exemption for work, family, health, injury or distance.

5.5. The Secretary or an appointed Officer maintains attendance and dues records. An absence alone is not disciplinary misconduct. Before proposing a change in internal status, the Secretary gives the member the relevant record, the proposed consequence and at least fourteen days to explain, correct an error or seek an exemption or payment arrangement. An attendance shortfall cannot be remedied retrospectively by inventing attendances. The Board considers genuine circumstances and decides by a majority at a quorate, non-conflicted meeting. It gives written reasons, the effective date and the internal review right under clauses 14.6A-14.6B. A non-urgent status change is held over during a timely internal review. Allegations of dishonesty or misconduct are dealt with through Section 14, not disguised as attendance administration.

5.6. A Full Member lawfully reassigned to internal Supporter status must surrender Club-issued front membership patches and wear approved Supporter identification. Return to Full Membership follows the applicable Introduction and FNG process unless the NEC authorises a transfer or reinstatement process. A change of patch status does not itself remove Association membership, voting or inspection rights. Any proposed change to legal associate status or membership rights must have a separate lawful basis under the Registered Rules.

5.7. A patched member who relocates where no Active Chapter is reasonably available may retain rights as a Nomad Member. The Nomad must remain active in Club communication, attend at least two of every three meetings of the nominated chapter in person or remotely, attend at least one Big 4 ride in person each Club Year until a local annual run exists, and meet conduct and dues obligations. These requirements replace the ordinary 80% and two-Big-4 requirements while no chapter is reasonably available.

5.8. Internal Supporter status may be offered to a former Full Member, an FNG unable to progress because of external circumstances, or a trusted person sponsored by a Full Member and approved by the Board. Family relationship alone does not confer it. Supporters may attend public and social activities but cannot vote on internal Club matters, hold internal Club office, officially represent the Club, wear the full Club patch or join Big 4 Club-only rides. They pay their own activity costs unless the Board approves assistance. After at least three months of active engagement, a Supporter may seek entry to the FNG process, and the Board may recognise qualifying Introduction Phase activities completed during that period. Association rights remain governed by clause 3.6.

5.9. Every member and recognised participant must follow this Constitution, valid policies and directions, the Road Rules and standards reasonably required to protect people, property, Club relationships and reputation.

5.10. Association membership ceases only as provided in Registered Rules 16-17 or a lawful expulsion under Rules 19-24. Under the supplied rules, an annual subscription more than twelve months in arrears results in deemed resignation; overdue subscriptions may affect rights earlier under Rule 12(4). This Constitution creates no earlier automatic legal cancellation. Written resignation must identify whether it concerns internal patch status, Association membership or both. When a relevant entitlement ends, Club-issued patches, money, records and other Club property must be returned under the applicable process; private property is not seized.

5.11. The NEC publishes the designated Big 4 calendar and applicable chapters at the start of each Club Year, with enough detail for members to plan. New designations and changes cannot retrospectively increase attendance obligations. A person becoming a Full Member partway through the year is required to attend no more than the number of applicable designated Big 4 rides remaining after that date, capped at two. A cancelled ride is not an absence. If fewer applicable qualifying rides are held than the requirement, the requirement reduces accordingly. A replacement is identified prospectively, does not count in addition to the cancelled ride, and is subject to reasonable exemption where the change prevents attendance. Existing work, family, health, injury and distance exemptions remain available.

6. UNIFORM AND PATCH POLICY

6.1. The approved common-style black only, Rustnuts vest is the only mandatory Club uniform and must be worn at official Club rides by FNGs, Full Members and Nomad Members. A person who is legally required to wear high-visibility clothing because they hold a motorcycle learner permit cannot become an FNG until that requirement no longer applies. Ordinary protective motorcycle clothing, wet-weather gear and mandatory personal protective equipment are permitted. Appropriate safety gear is recommended. Helmet covers are prohibited. Other Club merchandise is optional.

6.2. Front positions are described while looking directly at the vest: the Club Side is viewer's right / wearer's left, and the Personal Side is viewer's left / wearer's right. Rear positions are described while looking directly at the back: the Rear Club Side is lower-left and the Supported-Ride Side is lower-right. Schedule 1 shows these locations.

6.3. Except for personal patches displayed on the front Personal Side under clause 6.6, every exterior or inside-lining patch remains subject to the design, category and location approvals expressly required by this section. Club-issued national identity, chapter identifiers, the Chapter Compass Ring and core insignia also require any NEC and intellectual-property approval applying under this Constitution. A personal patch displayed on the front Personal Side does not require prior Chapter Board approval but remains subject to clauses 6.6 and 6.9.

6.4. The front Club Side is for Club-issued patches only. From top to bottom, the approved order is: membership patch and Chapter Compass Ring; approved permanent title or status; current national position; current chapter position; approved road name; and optional Club-issued ride patches at the bottom.

6.5. The membership patch and Chapter Compass Ring form one official identity assembly showing the current chapter or approved status. Private manufacture, separation, alteration, reproduction or transfer is prohibited. A title, position or road-name patch must be Club-issued or authorised. Only a current position may be worn. A road name requires Board approval and only one current road name may be displayed. A territorial bottom rocker or territorial wording is prohibited.

6.6. The front Personal Side may display personal patches chosen by the member without prior Chapter Board approval. The Chapter Board reserves the right to require a personal patch to be removed or concealed if, after considering the matter, it reasonably determines that the patch is illegal, does not align with Club values, is reasonably offensive, is misleading about Club status or authority, or is likely to materially damage the Club's name or reputation. If a complaint is made, the Board must discuss the complaint and give the member a reasonable opportunity to respond before a removal request is made, unless the patch is blatantly illegal or is clearly and immediately damaging to the Club's name or reputation. In that case, the Sergeant-at-Arms or another authorised officer may direct immediate removal or concealment pending prompt Board review.

6.7. A Club-issued ride, run, annual, charity or event patch may be displayed, at the member's choice, in one approved location: at the bottom of the front Club Side; on the lower-left Rear Club Side; or on the inside lining of the vest. No separate Chapter Board approval is required for the member's choice among those three approved locations. The same patch must not be displayed in more than one location unless the Chapter Board specifically approves duplication. The Board may direct spacing and arrangement so the official identity stack remains clear.

6.8. A patch originating from another motorcycle club requires NEC approval before display. All other patches displayed on the Supported-Ride Side, including patches from external supported rides, charities, clubs, organisations or community events, require Chapter Board approval. Attendance at an event or purchase of a patch does not create approval. No other rear or inside-lining patch is permitted unless the Board approves both the patch and its exact location.

6.9. The Sergeant-at-Arms enforces this section and may direct correction of a patch or non-compliant vest at an official activity. A personal-patch direction follows clause 6.6, including its limited urgent-concealment power. Allow a reasonable correction period for a sewn patch where there is no immediate identity or reputation concern. Give the reason for a direction and record any breach factually. The member may seek independent internal review under clauses 14.6A-14.6B within fourteen days of written notice, while complying with a valid direction. A successful appeal removes the breach record immediately. Otherwise, retain a vest-breach record for no more than twelve months unless an active disciplinary, grievance or legal matter, or a legal retention duty, requires longer. The same decision-makers must not hear their own appeal.

6.10. Members are issued one set of Club membership identity patches. A removable or Velcro arrangement for use on another approved cut may be considered, but it does not authorise a duplicate identity set or private reproduction. This does not change clause 6.7's separate rule about duplicate ride patches.

7. RIDE SAFETY, FITNESS TO PARTICIPATE AND ROAD RULES

7.1. This section applies to every member, FNG, Supporter, prospective person, guest, rider, passenger and support or recovery vehicle driver taking part in an Official Club ride.

7.1A. A member must not operate a motorcycle on a road or road-related area while wearing the approved Club vest or otherwise visibly representing the Club in Club uniform unless the member holds the motorcycle licence required by law and the motorcycle is currently registered, or is being operated under a lawful permit, and is roadworthy. This clause applies whether or not the ride is an Official Club Activity. It does not apply to a passenger, a person travelling by other lawful transport, or operation wholly on private property where the applicable law does not require a licence, registration or permit. A breach may be addressed proportionately under Section 14.

7.2. Each person is responsible for legal compliance and safe participation. Nobody may operate a motorcycle or support vehicle in an Official Club Activity while impaired to a degree that makes operation unsafe or unlawful. There is no blanket ban on alcohol consumption or lawful medication use, but legal consumption does not establish fitness to ride. Officers are not police, doctors or testing authorities and are not expected to search, test, diagnose or prove an offence. The precautionary powers below remain available without proving the cause of a safety concern.

7.3. An authorised officer may make a precautionary safety direction where they reasonably believe a person may not safely participate. The concern may be based on observed behaviour or operation, difficulty following directions, an admission or other credible information. Relevant causes may include alcohol, drugs, medication, fatigue, illness, injury, emotional distress or another physical or mental condition; the cause does not need to be established.

7.4. A safety direction may require a person not to start, to remain outside or leave the formation, to stop participating, not to ride as a passenger, not to drive a support vehicle, or to arrange safe transport, accommodation or motorcycle recovery. Proof of intoxication or a road-law offence is not required.

7.5. A direction under this section controls participation in the Club activity only. It does not authorise an officer to detain a person, conduct a search or test, seize keys or property, or otherwise exercise police powers. A person who refuses and continues independently is not participating in the Club ride and must not be treated as part of the formation.

7.6. Immediate ride-safety authority and escalation are: Road Captain; Sergeant-at-Arms; Vice President; President; then NEC.

7.7. The next authority may act where the preceding officer is absent, personally involved, unable or unwilling to act, or escalation is reasonably required. A higher authority may confirm, vary or end a direction once the group is safely stopped, but no officer or member may undermine an active safety direction while the group is moving.

7.8. A safety direction is precautionary and is not, by itself, a disciplinary finding, accusation of illegal conduct or medical assessment. It must be obeyed without argument during the incident. Refusal, threats, interference or unauthorised re-entry may be addressed under Section 14.

7.9. The officer makes a factual and confidential record as soon as practicable and provides the affected person with the reason and scope of the direction. The person may respond and seek independent internal review under clauses 14.6A-14.6B within fourteen days of written notice. A higher operational authority may still review an immediate direction under clause 7.7. A good-faith direction is not invalid merely because the concern is later unproven. The Club offers practical help where reasonably available, but the person remains responsible for personal transport, accommodation, vehicle recovery and related costs.

7.10. The Road Rules are controlled separately within lawful written authority. The Road Captain may make a one-ride operational variation; a permanent local variation requires Chapter Board approval; and national, Big 4, inter-chapter, public, officer, formation, lane, overtaking or Club-wide standards require NEC approval. No variation may override this Constitution, the Registered Rules or the law, or exceed an Association delegation.

8. CHAPTER GOVERNANCE AND CLUB POSITIONS

8.1. Each Active Chapter has an internal Chapter Board consisting only of the President, Vice President, Secretary, Treasurer, Sergeant-at-Arms and Road Captain. Each distinct person has one ordinary Board vote regardless of temporarily combined roles. The Board acts under this Constitution, valid NEC decisions, its approved budget and the Association Committee's written authority. It is not automatically the Association's statutory committee.

8.2. The Board acts collectively. No officer may alone create a rule, commit expenditure, impose formal discipline, enter a contract or overrule a recorded Board decision without lawful written authority. Internal allocation of tasks does not authorise subdelegation of the Association Committee's legal powers. A Non-Board holder may attend and report but has no Board vote solely because of that role. Formal Association disciplinary decisions follow Section 14 and the Registered Rules.

Chapter Board positions

Position	Primary internal function
President	Chairs internal chapter meetings, represents the chapter, implements recorded decisions and participates in the internal NEC.
Vice President	Assists the President and acts where the President is absent, unavailable or conflicted.
Secretary	Maintains local minutes, correspondence, attendance, membership-status, notices and disciplinary referral records; supplies required updates.
Treasurer	Manages allocated funds, authorised dues, budget records, transactions and assigned assets; reports to the Board and Association Treasurer.
Sergeant-at-Arms	Maintains order, enforces authorised vest and Club rules, protects Club property and supports ride safety.
Road Captain	Plans and leads rides; primary operational and ride-safety authority during an active ride.

Non-Board Club positions

Position	Primary internal function
Officer	Reports to the Sergeant-at-Arms or Road Captain; assists with corner marking, hazards, events and other operational duties.
Tail Gunner	Rides at the rear, maintains communication, assists stopped riders and must hold current First Aid. An Officer assumes the rear function if the Tail Gunner stops.
Social Media Officer	Manages approved account access and publishes official notices, events and media under Board and NEC direction. Detailed posting frequency remains in the role description, not a new constitutional duty.

8.3. A Chapter Board may create another Non-Board role by written bylaw. The role does not become a Board position, carry a Board vote, create disciplinary authority, bind the Club, or authorise a national title or position patch without the required approval.

8.4. A local expenditure or policy proposal must be considered by the Chapter Board first and decided or referred within its authority. The Board cannot use this process to block a right expressly given by this Constitution.

8.5. For an internal Chapter Board decision, quorum is a majority of the distinct Board members currently holding office and eligible to vote on the matter, with at least three participating. Vacant positions and a second role held by the same person do not add people to the count. A conflicted person does not vote or count as an eligible participant. No decision is made after quorum is lost. The statutory Association Committee uses its own quorum rules, not this clause.

8.6. Where vacancy or conflict prevents an internal Board quorum, defer non-urgent business and refer the matter to a quorate, impartial NEC within its lawful authority. If that is not possible, the Association Committee must arrange an impartial alternative decision-maker or panel, with at least three people for an internal panel and a written scope of authority. An affected officer cannot appoint their own appeal panel. No fallback bypasses a reserved member vote, statutory discipline procedure or legal quorum; immediate ride-safety powers remain available.

9. ELECTIONS, TENURE, VACANCIES AND ELIGIBILITY

9.1. Only a Full Member in Good Standing with at least two years of Full Membership may nominate for an internal Chapter Board position. A two-thirds NEC vote may waive the two-year requirement; founding Chapter Board officers are exempt. Nomads cannot hold Chapter Board or internal NEC office, but may hold Non-Board roles. These internal qualifications do not amend eligibility for the Association Committee under Registered Rule 49.

9.2. Internal Chapter Board positions are elected by majority vote of eligible Full Members at the Annual Chapter Meeting for two-year terms. Non-Board Club positions are appointed by majority Chapter Board vote, recorded, and may run for up to two years and be renewed. A Club office does not automatically confer Association Committee membership. Association Committee elections and terms follow Registered Rules 50-55, including elections at each Association AGM.

9.3. An elected internal Chapter Board holder may be removed by a two-thirds vote of eligible Full Members at a properly notified, normally quorate chapter meeting after written notice and a reasonable opportunity to respond. A Non-Board holder may be removed by majority Chapter Board vote after the same fair notice and response process. These decisions do not remove an Association Committee member from legal office; that requires the Registered Rules' process.

9.4. A nominee for President or Vice President must have completed a full term in another Chapter Board position. Founding officers are exempt, and the NEC may grant a written time-limited continuity exemption where no eligible candidate is available.

9.5. A member ordinarily holds one internal Club position. A small chapter may temporarily combine compatible duties where necessary, with reasons and review recorded. One person still has one ordinary vote on each Board on which they lawfully serve. Holding Chapter Board positions in more than one chapter requires NEC approval. Existing authorised cross-chapter Treasurer arrangements may continue with separate ledgers, reporting and the two-independent-approver control in clause 13.3. No dual-role arrangement changes statutory office eligibility or appointment requirements.

9.6. Immediate family members must not serve on the same Chapter Board unless two-thirds of non-conflicted Board members approve a written exemption. If a family relationship arises later, the person most recently elected or appointed must step down or move to a Non-Board role unless the exemption is granted.

9.7. A Club position becomes vacant if the holder’s motorcycle licence is cancelled, suspended, surrendered, expires or otherwise ceases to authorise independent motorcycle riding. A non-medical loss vacates every Club position immediately. Where the loss is medical, the NEC may, by a two-thirds vote and written reasons, retain the person only in a specified administrative position whose duties can be performed safely and lawfully. A medical retention cannot apply to a ride-safety or riding-required position, must be reviewed periodically and ends immediately if the arrangement becomes unsafe or unlawful. These consequences apply to internal Club positions only; statutory Association offices may end only as provided in the Registered Rules and law.

9.8. An internal Chapter Board may fill a casual vacancy temporarily until the next eligible meeting or election. Outgoing and incoming holders may complete an agreed transition of up to three months, but only the current holder has the internal office's authority. An Association Committee vacancy is filled under Registered Rule 57; the statutory secretary vacancy must be filled within fourteen days.

9.9. A nominee in a contested election must leave the room or electronic meeting space while the vote is conducted. A confidential ballot must not identify the voter. A person with a material conflict must disclose it and not administer or determine the affected vote.

9.10. For an ordinary tied Chapter Board motion, the chair may exercise a casting vote. No casting vote applies to an election, disciplinary outcome or Special Resolution. If the chair is conflicted or declines to cast, the motion is not carried and may be adjourned for reconsideration.

9.11. A nominee's candidacy alone does not remove a voting right expressly granted by the Registered Rules. Internal confidential voting and the nominee-withdrawal requirement in clause 9.9 must not be applied to override an Association election procedure. Statutory elections are administered separately.

10. MEETINGS, QUORUM AND VOTING

CHECK THE MEETING TYPE FIRST

An internal Club vote and an Association general meeting are different proceedings, even if held at the same venue and time. Record the applicable authority and eligible voters before each decision.

10.1. Each chapter ordinarily meets monthly during the last week of the month. The preceding meeting sets the date, time and location or access method. A pre-meeting ride is encouraged but is not mandatory.

10.2. Each chapter holds an Annual Chapter Meeting before the Association AGM where practicable, to receive reports, present its approved budget report, propose or confirm dues within the authorised fee-setting process, hold internal elections where due and deal with chapter business. It is not the statutory AGM. It may be combined with the ordinary monthly meeting and count once, or held separately without increasing the attendance denominator. Delay in a chapter meeting must not delay the statutory AGM.

10.3. The Association holds one statutory AGM, intended to be held in August after the Financial Year, within the deadline in Registered Rule 30 and any lawful extension. The Association Committee convenes it and performs all required AGM business, including legal committee elections, consolidated reporting and the subscription-setting process. Notice, attendance, voting, proxies and chairing are governed by the Registered Rules. Internal national Club business may occur at the same event only if its agenda, authority, eligible participants and separate votes are clearly identified.

10.4. Internal ordinary or special chapter meetings require at least seven days' individual notice; Annual Chapter Meetings and ordinary national Club meetings require fourteen days. An internal Constitution amendment requires twenty-one days and the full proposed wording. Each notice states date, time, location or access details and the business. Association general meetings instead follow Registered Rule 33: fourteen days normally, or twenty-one days where a special resolution is proposed, including the full special-resolution wording and required proxy information. Use the notice method in clause 2.1 or the Registered Rules as applicable.

10.5. An internal special chapter meeting may be called by its President or three Club Voting Members of the chapter. An internal national Club meeting may be called by the NEC or requested by at least 10% of all Club Voting Members and must be held within six weeks of a valid request. Only notified business is considered, except urgent ordinary business permitted by clause 10.10. These arrangements do not replace or limit an Association general-meeting request under Registered Rule 32, including its member-request and timing rights.

10.6. Internal chapter quorum is one-third of Full Members assigned to the chapter and eligible to vote on the business. Internal national Club quorum is one-third of Club Voting Members eligible on the business, plus representation from at least 51% of Active Chapters. Approved simultaneous electronic participation counts; apply clause 2.4 to fractions. Chapter Board quorum is in clause 8.5. Association general-meeting quorum is separately governed by Registered Rule 36, which provides 10% of eligible Association voters, including permitted proxy and electronic participation. No internal quorum replaces that legal quorum.

10.7. Each eligible internal voter has one vote. Full Members vote on Home Chapter matters; Full Members and Nomads vote on national Club matters. Nomads do not vote on internal chapter elections, removals, bylaws, chapter quorum or Full Membership patch decisions. Unless a higher threshold applies, an internal motion passes by simple majority. Internal proxy voting is not permitted. A casting vote is limited to ordinary internal business, not elections, discipline, Full Membership or internal Constitution amendments. Association votes and proxies follow Registered Rules 13, 34 and 38-40, not these internal restrictions; legal voters cannot be excluded by Club status alone.

10.8. Draft minutes are distributed to the appropriate recipients within seven days and confirmed for accuracy at the next applicable meeting. Identify them as draft until confirmed, record corrections and retain the confirmed version. Confidential Board or disciplinary content is shared only with appropriate recipients, without limiting legal inspection rights. A decision's effect depends on the resolution and governing rules, not simply later confirmation of the minutes. Association general, AGM, NEC, Annual Chapter and chapter general-meeting minutes are retained permanently; Chapter Board minutes for at least seven years.

10.9. The Chapter President chairs internal chapter meetings, followed by the Vice President and then a person elected by those present. The National Chairperson chairs internal national Club and NEC meetings; if unavailable or conflicted, an eligible substitute is elected for that meeting. An acting chair has the applicable procedural and casting authority but no extra ordinary vote. Association general and Committee meetings are chaired under Registered Rule 46; the National Chairperson does not take that role merely by holding an internal title.

10.10. A written internal motion should be submitted at least ten days before an ordinary or special chapter meeting, twenty-one days before an Annual Chapter or national Club meeting, and twenty-eight days before a proposed internal Constitution amendment. An urgent ordinary internal motion may be accepted only where members are not unfairly disadvantaged and no special notice or reserved decision is involved. These administrative targets do not restrict a legal member's rights to submit business or request an Association meeting under the Registered Rules.

10.11. An internal member meeting without quorum after thirty minutes is adjourned for seven to twenty-one days, with at least five days' individual notice of resumption. Only unfinished business is considered. If the reconvened internal meeting is still short of quorum after thirty minutes, at least five eligible voters may conduct ordinary unfinished business. The normal internal quorum remains necessary for internal Constitution amendments, elected internal Board or National Chairperson removal, and chapter closure. Chapter Board quorum is never reduced by this clause. Association general-meeting adjournments and quorum follow Registered Rules 36-37 instead.

11. NATIONAL EXECUTIVE COMMITTEE AND ASSOCIATION GOVERNANCE

11.1. The NEC is the Club's internal national coordinating body. It is not automatically the governing committee of the incorporated Association. Legal management remains with the Association Committee constituted under Registered Rules 42-57. The same people may hold both kinds of office only through the required separate elections or appointments. NEC powers concerning Association affairs depend on lawful written authority and cannot replace a statutory duty or reserved member decision.

11.2. The internal NEC comprises the National Chairperson and the sitting Presidents of recognised Active Chapters. A Vice President participates as a Chapter President only while formally acting in that office. National Secretary and National Treasurer are internal administrative offices which may be filled as needed; they are not automatically the statutory offices. Each Active Chapter has one ordinary vote through its sitting or acting President. Where the Chairperson also holds a Chapter Presidency, the chapter's ordinary vote is cast by its acting President. The Chairperson has no ordinary vote and only a permitted casting vote on tied ordinary business. National Secretary and Treasurer have no ordinary vote unless separately acting as an eligible Chapter President. Future chapter recognition does not itself create an Association Committee seat.

11.3. The Chapter Presidents elect the National Chairperson as Custodian and Protector of the Club. A nominee must have completed at least one full term as a Chapter President. Founding officers are exempt from this requirement, and the NEC may grant a written time-limited continuity exemption where no eligible candidate is available. The National Chairperson serves a two-year term and may re-nominate. The position is national, is not reserved to a founder or particular chapter, protects the Constitution, culture, patch and unity, and does not replace a Chapter President in local operations.

11.4. The NEC coordinates national identity, values, branding, chapter support, national activities, Club records, authorised internal policies and inter-chapter matters. It assists the Association Committee with legal, financial, insurance, contractual and reporting work only within written authority. The Association Committee retains its legal duties, including convening the statutory AGM, overseeing consolidated financial reporting, maintaining legal membership records and making or authorising Association commitments. NEC approval of an internal proposal does not itself authorise a contract, bank mandate, borrowing or statutory lodgement.

11.5. The internal NEC meets at least quarterly, in person or through simultaneous electronic communication. Ordinarily seven days' written notice and an agenda are required; an urgent meeting may proceed on shorter notice with agreement of a majority of ordinary voting members. Quorum is 51% of the filled ordinary-voting chapter representative positions, rounded up. A conflict excludes participation and voting but does not reduce that normal quorum. An ordinary decision passes by simple majority, unless a higher threshold applies. Record attendance, disclosures, eligibility and votes. Conflicted voters cannot be counted towards a quorum; refer an unresolvable conflict under clause 8.6. The Association Committee follows its separate meeting and conflict rules.

11.6. Every internal NEC holder must be a Full Member in Good Standing and eligible for the internal role. A Chapter President joins and leaves the NEC with that internal office. A Chairperson vacancy is filled by the Chapter Presidents for the balance of the existing two-year term. The NEC appoints an internal National Secretary or Treasurer by two-thirds vote for up to two years and may remove an appointed internal officer by that threshold after notice and an opportunity to respond. An internal office becomes vacant at term expiry, resignation, death, lawful removal, legal disqualification, loss of relevant Club eligibility or loss of the underlying chapter office. These rules do not replace statutory Committee appointment, vacancy or removal provisions.

11.7. The internal National Secretary coordinates Club records and supports chapter Secretaries. The Association Secretary separately holds the statutory office under the Registered Rules, must consent, be at least eighteen and reside in Australia, and remains responsible for the legal duties of that office. A person may fulfil both functions only if properly elected or appointed. An unfilled internal national role does not mean the statutory office is vacant. The Association Committee must fill a statutory secretary vacancy within fourteen days and required notifications must be made. The internal National Treasurer assists the Association Treasurer with chapter consolidation and banking controls; legal responsibility is not transferred by the internal title.

11.8. The NEC must appoint a neutral National Auditor by two-thirds vote for a renewable twelve-month term. The Auditor cannot also be a Chapter President, National Treasurer or Chapter Treasurer and has no ordinary NEC vote from that appointment. Within lawful records access and authority, the Auditor reviews Club policy compliance, membership and attendance records, event funds, bank records, transactions and controls; may request relevant information, issue written correction requests and report findings. The title is an internal compliance role, not a statutory qualification. It never replaces an independent external review or audit required by law, the Registered Rules or a valid Association resolution.

11.9. The National Ride Committee consists of every Chapter Road Captain and coordinates national routes, timing, safety planning and consistent ride procedures without overriding a Board, the NEC or the Road Rules.

11.10. All internal officers must disclose a material conflict before participating in a matter. The record states its nature, extent and management. Unless a lawful exception applies, the officer is absent from consideration and does not vote or hear an appeal. Shared interests common to a substantial class of members are distinguished from personal conflicts. Keep a conflict register and record exclusions in minutes. Association Committee disclosures, participation, the register and any further statutory disclosure follow Registered Rule 65 and applicable law; no internal fallback permits an inquorate legal Committee decision.

11.11. The elected internal National Chairperson may be removed only after at least twenty-one days' notice of the proposal and reasons, a reasonable opportunity to respond, and a two-thirds vote of Club Voting Members voting at a normally quorate national Club meeting. This internal safeguard is separate from statutory removal. Removal from any Association Committee office follows the Registered Rules and law. Vacancy filling for the internal office follows clause 11.6.

12. CHAPTERS, TRANSFERS AND NATIONAL EVENTS

12.1. A new chapter requires at least five fully patched members, including eligible Nomads, a nominated founding President and Sergeant-at-Arms, a written proposal covering location, membership, leadership, budget and operations, and majority NEC approval.

12.2. Recognition creates an internal Rustnuts chapter only. It cannot independently contract, borrow, employ, litigate, insure, register intellectual property, open a bank account or own Club funds or property. The chapter receives this Constitution, approved branding resources and NEC onboarding support. Before exercising delegated Association powers, it must have compliant procedures, recorded officeholders and written operating, budget, banking and asset authority from the Association Committee. NEC recognition alone is not that delegation.

12.3. A chapter controls ordinary local rides, events, membership administration and spending within its approved budget and delegation. It cannot conflict with this Constitution or a valid NEC decision, weaken member protections, or alter national identity, patch, finance or ride standards without approval.

12.4. A Full Member in Good Standing transferring between Active Chapters retains internal Full Membership, recognised tenure and approved patches. Notify both Chapter Secretaries and the national records custodian in writing. The receiving chapter may conduct a local induction. The transfer takes effect when recorded in the Club chapter register and relevant Association records are updated. It does not create a new legal membership or reset Association rights. Internal transfer disputes go to the NEC subject to an impartial process and the grievance rights in Section 14.

12.5. Growth is an intention, not a recruitment quota. Review considers retention, culture, ride leadership, national support, engagement and long-term viability, not numbers alone.

12.6. Each Active Chapter organises or leads at least one official ride each Club Year unless the NEC approves an exemption. The Club's annual signature run is the Not Dead Yet Run, formerly the President's Run, ordinarily with an overnight component and scheduled through the published calendar. The Association AGM remains the single statutory AGM. Annual Chapter Meetings should precede it but must not prevent its timely conduct.

12.7. The NEC may prospectively designate national, Big 4 and charity events within its authority. The National Ride Committee coordinates planning; hosting, funding and participation requirements need the appropriate internal and Association approvals. Attendance designations comply with clause 5.11 and cannot be altered retrospectively.

13. FINANCE, ASSETS AND CONSOLIDATED REPORTING

13.1. All money received for a Club purpose belongs to the Association, including fees, donations, fundraising, grants, merchandise and event income. The Association Treasurer or an authorised delegate receives and receipts it, records its source, and ensures deposit into an Association account no later than five working days after receipt, as required by the Registered Rules. It is never kept in a member's personal account. A properly authorised petty cash fund is managed and recorded under Registered Rule 69.

13.2. Chapter accounts, subaccounts or cost centres may be established in the Association's name with Association Committee approval. The NEC may recommend allocations. Chapters control allocated funds only within approved budgets and written authority; they do not separately own them.

13.3. Chapter Treasurers record receipts, transactions and assigned assets, reconcile ledgers and report to the Board and Association Treasurer, with coordination by a National Treasurer where appointed. Every payment, withdrawal or transfer requires two distinct authorised approvers, neither being the payee. Predesignated eligible alternates are used for a reimbursement to a usual approver. Approval is recorded before payment. Bank mandates and execution requirements must also be met; instruments requiring two Association Committee signatures under Registered Rules 48 and 69 are not satisfied merely by two internal officers approving them.

13.4. The Chapter Board approves its annual internal budget and expenditure within Association Committee-approved limits and delegation. Members receive the approved budget report at the Annual Chapter Meeting and it is attached to or included in the minutes. A separate chapter-member budget vote is not required. National commitments, signatories, contracts, borrowing, insurance, grants, asset disposals and matters outside chapter authority require the Association Committee or its lawfully authorised decision-maker. Emergency expenditure remains within available authority and is promptly reported and minuted.

13.5. The Association Treasurer ensures consolidated accounts cover all chapters, activities, assets and liabilities. An appointed National Treasurer may coordinate this work. The Financial Year ends on 30 June; financial records are retained for at least seven years. The Association Committee arranges the required certification and presentation of the statements and any required review or audit at the statutory AGM. The Association Secretary or authorised delegate lodges the annual statement within one month after that AGM, subject to any applicable exemption or lawful extension. No blanket external audit is imposed by these internal bylaws; any legally or validly required review or audit must be independent and appropriately qualified.

13.6. No chapter pays a levy, tribute, due or fee to another chapter, including a founding or Mother Chapter. The NEC may propose a national event or project budget and contributions from chapter allocations, normally proportionate to national Club Voting Membership. Implementation requires the Association Committee's budget authority and approval by a majority of Active Chapter Boards, with each decision minuted and the funds accounted for centrally. These internal allocations do not create a new member fee without the authorised fee-setting process.

13.7. All vehicles, equipment, records, passwords, bank access, intellectual property and assets acquired for Club purposes belong to the Association. The asset register identifies custody. A person leaving office or membership must return Club property, records, credentials and money within 28 days or a shorter reasonable period needed to protect the Club. Properly authorised expenses may be reimbursed.

13.8. Member inspection of presented statements and other Association financial records follows Registered Rules 18 and 75 and applicable law. Access is not refused merely because the record is held by a chapter. Any permitted refusal or redaction must have a recorded lawful reason. The National Auditor's internal role does not replace members' legal inspection rights.

14. DISCIPLINE, APPEALS AND GRIEVANCE RESOLUTION

TWO REVIEW PATHS

Formal Association suspension or expulsion uses the registered seven-day appeal deadline. A non-disciplinary internal operational review uses fourteen days from written notice. Do not confuse the two.

A. Formal discipline and internal operational review

14.1. This section separates internal operational review from formal Association discipline. A breach of this Constitution, a valid policy or a lawful direction may be referred for investigation, but formal disciplinary action against an Association member must have grounds under Registered Rule 19 and follow Registered Rules 20-24. Conduct affecting safety, people, property, relationships, national identity or reputation is assessed against those grounds, not treated as automatic guilt.

14.2. A complaint identifies the conduct, dates or period, rule and available information. A plainly unsupported or out-of-scope referral may be declined with recorded reasons, without preventing a legal grievance right. For formal discipline, the Association Committee determines whether sufficient grounds exist and appoints the disciplinary subcommittee. Its Secretary gives the required written notice between fourteen and twenty-eight days before the hearing, specifying allegations, possible action, hearing details, the opportunity to attend and submit a statement, and the registered appeal rights. Relevant material is provided in time for a meaningful response.

14.3. The decision-maker must be impartial. An internal review panel has at least three people who did not investigate or determine the original decision. For formal discipline, the Association Committee appoints an unbiased subcommittee under Registered Rule 20; this Club policy prefers at least three impartial people where practicable without changing that rule. A complainant, material witness, personally interested or biased person must not decide the case or hear the appeal. A support person or representative may assist the affected member consistently with a fair process.

14.4. Formal Association disciplinary powers and timing follow Registered Rule 22. The subcommittee hears the member and considers any written statement, then may take no action, reprimand, suspend membership rights for a specified period or expel. It cannot fine the member. Under the supplied rule, suspension or expulsion takes effect immediately after the vote; a Chapter Board ratification is not an additional condition. The reasons, outcome, effective time and appeal rights must be communicated in writing promptly and no later than fourteen days, without delaying the legal seven-day appeal deadline.

14.4A. A Chapter Board seeking formal expulsion may make a recorded recommendation supported by two-thirds of its eligible, non-conflicted members at a quorate meeting. That is a referral only: it does not expel the person, bind the disciplinary subcommittee, veto a lawful decision or prevent the Association Committee acting under the Registered Rules. Where the Board cannot form an impartial quorum, refer the concern directly to the Association Committee.

14.4B. The formal disciplinary outcome must expressly explain that notice of appeal may be given immediately to the disciplinary subcommittee after the vote, or in writing to the Association Secretary no later than seven days after the vote, under Registered Rule 23. The longer fourteen-day period for an internal operational review does not apply to formal suspension or expulsion. No officer should tell a member to wait for a later letter before preserving that appeal right.

14.5. Immediate operational restrictions may be used only within lawful authority where reasonably necessary to protect safety, people, property, evidence or process integrity. Give written reasons and scope promptly, review within seven days and at least every fourteen days while continuing, and use the least restrictive effective measure. A precautionary direction is not a finding of misconduct. It must not be used as a substitute for registered discipline or to suspend legal voting, inspection or membership rights without the required authority. Ride directions remain governed by Section 7.

14.6. Formal suspension or expulsion appeals follow Registered Rules 23-24. On timely notice, the Association Committee appoints at least three impartial people who were not on the original subcommittee and have no personal interest or bias. The appeal meeting must be convened as soon as practicable and no later than twenty-one days after receipt of the appeal. The member receives the required notice and opportunity to be heard. The subcommittee votes by secret ballot on whether to uphold or revoke the decision; no proxy voting applies. Record and provide the outcome promptly. This internal document does not extend the registered deadlines or add an alternative appeal that displaces them.

14.6A. A person may seek internal operational review of a non-disciplinary patch, ride-safety, attendance-status or comparable internal decision within fourteen days of receiving written notice. A review request goes to the relevant Secretary, or another non-conflicted Secretary or Association Committee member if that person was involved. A request concerning formal membership suspension or expulsion must instead be directed immediately to the registered appeal process in clause 14.6.

14.6B. An internal operational review is heard by three impartial people who were not involved in the original decision. The non-conflicted NEC may arrange the panel only within written authority; otherwise the Association Committee appoints it. People may come from either chapter, and independent outside people may be used where needed and authorised. Hear the review as soon as practicable and ordinarily within twenty-one days of receipt; an exceptional extension needs written reasons and a new date. Give a written decision within fourteen days after the hearing. All three panellists participate and decide by simple majority, without a casting vote. The panel may confirm, vary or set aside the internal decision within its authority, but cannot vary legal membership rights. Valid immediate safety directions remain effective during an incident; continuing restrictions must be separately justified and reviewed.

14.7. Inter-chapter concerns, allegations against a Chapter President or national officer and national identity matters may be coordinated by the NEC, excluding conflicted officers. That does not transfer the Association Committee's disciplinary powers. Use neutral people from unaffected chapters where available, but do not require three unaffected chapters to exist. Confidentiality permits support, legal advice, lawful reporting, regulator or court responses and necessary safety disclosure.

14.8. During a valid suspension or interim restriction, a member may be directed not to wear or publicly display the Club vest or Club-issued patches and may be required to surrender Club-issued identity patches for safekeeping. Officers cannot seize a privately owned vest or personal property. A whole vest may be voluntarily lodged where removing sewn patches is impractical. Property is returned promptly if the member is cleared or the restriction ends; Club-issued property is returned when membership ends.

B. Grievances, disputes and protected complaints

14.9. Grievances under the Registered Rules follow their Division 3 process. Where safe, the parties first attempt resolution within fourteen days of the dispute coming to each party's attention. If unresolved, they notify the Association Committee within the following ten days and agree to or request a mediator, attempting settlement in good faith. A Club Secretary receiving a grievance forwards it promptly rather than starting a competing process. Support persons or representatives may assist. Internal chapter disputes may use the same safeguards without displacing legal rights.

14.10. The mediator is chosen by agreement. Without agreement, a member-to-member dispute uses an impartial person appointed by the Association Committee; a dispute between a member and the Association or Committee uses a registered mediator as required by Registered Rule 27. The mediator gives each party a fair opportunity to be heard and consider written material, and facilitates settlement rather than deciding the dispute.

14.11. Mediation costs are allocated by agreement; without agreement the Association Committee meets the mediation costs as required by Registered Rule 28. Each party ordinarily meets their own personal costs unless otherwise agreed. A settlement is recorded in writing and accepted by the parties; participation in mediation alone does not bind a person to an outcome.

14.12. A grievance about a matter already subject to formal disciplinary proceedings waits until that process, including appeal, is completed as provided by Registered Rule 25. Where a member-Association grievance has already begun, disciplinary action about the same subject must not be commenced contrary to applicable grievance protections. Safety precautions remain available within lawful scope and are not used to retaliate against a complaint.

14.13. If mediation does not resolve the dispute, the parties retain any legal rights available to them. Arbitration is binding only where all affected parties separately agree in writing after the dispute arises.

14.14. A dispute spanning chapters or involving an NEC officer is referred to non-conflicted national officers for coordination. An authorised fact-finding or internal review panel has at least three impartial people; they need not come from three unaffected chapters. It hears the parties and ordinarily reports within thirty days. Any national internal outcome stays within written authority and does not substitute for registered mediation, formal discipline or a reserved member vote. Conflicted representatives do not take part in the decision.

14.15. Formal disciplinary appeals follow clause 14.6 and Registered Rules 23-24. Internal operational reviews follow clauses 14.6A-14.6B, including vest decisions under clause 6.9, ride decisions under clause 7.9 and attendance decisions under clause 5.5. Constitutional proposals follow Section 16; a dispute about the exercise of a legal membership right remains subject to the Registered Rules and applicable law.

14.16. No person is penalised merely for making a genuine complaint, requesting a review, participating in a grievance, obtaining legal advice or making a lawful report to police, an insurer, a regulator or another appropriate authority. An unproven or unsuccessful complaint is not, for that reason alone, malicious. An allegation of knowingly false information or separate misconduct requires its own evidence and fair process. Retaliation is prohibited.

15. INTELLECTUAL PROPERTY, RECORDS, POLICIES AND SCHEDULES

15.1. Use of a Rustnuts name, logo, insignia, slogan, patch design, Chapter Compass Ring or other Club intellectual property for merchandise, social media, fundraising, promotion or publication requires Chapter Board approval and must be recorded with the NEC where it affects national identity.

15.2. A chapter may use approved Club intellectual property locally but cannot alter core symbols, slogans, patches, compass rings, national identifiers, approved colours or layouts without NEC approval within its authority. Approval is a limited Club permission, not ownership or a right to private registration, licensing or sale. The authority order in clause 2.2 applies: this is an internal Constitution, not the Registered Rules.

15.3. A Board may adopt written local operating policies within its authority. It cannot alter this Constitution's substantive membership-status requirements, voting arrangements, safeguards, fee liabilities, Board composition or amendment thresholds by labelling the change an operating policy. No internal document may alter Association rights or another matter fixed by the Registered Rules.

15.4. Road Rules, forms, diagrams, procedures and operating instructions may be controlled separately. The NEC may maintain schedules within existing lawful authority for patch administration, authorised fees, FNG continuation-fee administration, rides and scheduling. They cannot materially change a Club status, voting right, eligibility requirement, attendance percentage, fee liability, disciplinary safeguard, Board composition or amendment threshold established here, or override the Registered Rules. An attached schedule is binding internally. A purely administrative correction or like-for-like visual replacement may be approved and recorded; a material rule change follows Section 16.

15.5. Every controlled document must state its title, version, approving body, approval date and commencement date. Current versions must be reasonably available to affected members and superseded versions retained as Club records.

15.6. The Association Secretary retains legal custody of the Registered Rules, legal member register, Association minutes, correspondence and any common seal under Registered Rules 47 and 72-75. Internal national and chapter Secretaries hold working records and provide updates. The Association Treasurer retains or controls statutory financial records, with chapter and national working copies as authorised. Documents and any seal are executed only by persons authorised under the Registered Rules, law and a recorded delegation; an NEC title alone is not a signing authority.

15.7. Members and membership applicants may obtain the Registered Rules free of charge. This internal Constitution is also supplied electronically free of charge. Requests for Association general-meeting minutes and other records are handled under Registered Rule 75; internal working locations do not limit access. Aim to supply an authorised copy within fourteen days. A reasonable copying or delivery charge may be made only where the governing rules and law permit it.

15.8. The Association member register is maintained and inspected under Registered Rule 18 and applicable law, including permitted restrictions on access to personal information and the prohibition on improper use. An internal officer cannot impose a blanket refusal or copying ban inconsistent with those rights. Requests and any restriction are handled by the Association Secretary with the required reasons and process.

15.9. Members may inspect and obtain the financial statements and accompanying certificates, review or audit reports presented at the Association AGM, as provided by the Registered Rules and law. Handle requests promptly, ordinarily within fourteen days, and charge only a permitted reasonable copying or delivery fee.

15.10. Requests for Chapter Board, NEC, disciplinary, grievance, employment, commercial, legal or other Association records are handled through the appropriate custodian and Association Secretary. Grant access unless a refusal, limitation or redaction is permitted under Registered Rule 75 and applicable law. Record the lawful basis and explain the general reason unless doing so would itself disclose protected information. Internal confidentiality labels do not automatically override legal inspection rights.

16. AMENDMENTS

16.1. A Full Member may propose an internal chapter bylaw or operating-policy amendment in writing. Give at least fourteen days' notice. Approval requires two-thirds of eligible chapter Club Voting Members present at a quorate meeting. The Secretary records the decision and sends it to the NEC within fourteen days for the required national consistency approval. This process cannot amend this Constitution, a national policy outside chapter authority, or the Registered Rules.

16.2. A national operating policy within existing authority may be proposed by a chapter or the NEC and requires two-thirds of all Active Chapter Presidents. It cannot change substantive provisions of this Constitution, reduce protected rights or bypass a member decision. Any use of Association powers also requires the Association Committee's written authority.

16.3. A substantive amendment to this internal Constitution is reviewed by the NEC, with its recommendation and reasons circulated to members. Give at least twenty-one days' notice, the complete proposed wording and an explanation of its effect. Internal approval requires at least two-thirds of valid votes cast by eligible Club Voting Members at a national Club meeting with the normal quorum in clause 10.6; the reduced reconvened quorum does not apply. No casting vote applies. This is an internal Club approval threshold, not a statutory special resolution. It does not restrict Association members' legal meeting or voting rights.

16.4. Internal approval alone cannot create Association authority or alter the Registered Rules. Before commencement, the Association Committee records adoption or endorsement of the bylaws within its powers and any required written delegations; any matter reserved to an Association general meeting must first be decided there under the Registered Rules. A change to the Registered Rules is a separate proposal under Rule 77, with the applicable special-resolution notice, eligible Association vote, lodgement and regulatory approval. CAV approval is not represented as having been obtained for this internal document.

16.5. Where immediate action is reasonably necessary to protect safety, legal standing, identity or reputation, the NEC may unanimously issue a temporary emergency policy only within existing lawful authority. It cannot amend or suspend this Constitution, remove procedural rights, override the Registered Rules or create a permanent new power. It expires after ninety days or at the next general meeting dealing with it, whichever is earlier, unless lawfully replaced or renewed. Association Committee powers and legal duties are unaffected.

16.6. The national records custodian keeps an amendment register showing the proposal, approving bodies, notice, vote, legal authority, commencement and superseded wording. Record CAV lodgement only where an actual Registered Rules change requires it. Distribute approved internal amendments to every chapter and incorporate them into the next controlled copy. Purely clerical corrections may be recorded by the NEC only if they do not change meaning or rights. If a provision conflicts with a higher authority, it is inoperative only to that extent and an appropriate correction must be proposed.

17. ALL-WOMEN'S CHAPTER, CHAPTER CLOSURE, DISSOLUTION AND TRANSITION

17.1. The existing proposal for an all-women's internal Rustnuts chapter is retained for future consideration, not implemented by adoption of v4. Before any women-only eligibility restriction is used, the Association Committee must obtain focused advice on the actual proposal and record the lawful basis and required approvals. A recognised chapter remains part of the one Association and subject to the same authorised financial, insurance, intellectual-property, reporting and disciplinary controls. Its eligibility administration, including gender identity, must be lawful, respectful and clear. If later recognised under Section 12, its President participates in the internal NEC on the same basis as other chapter Presidents; this does not create an automatic statutory Committee seat. Distinct names or identifiers need the required IP approvals.

17.2. The NEC may propose suspension or withdrawal of a chapter's internal recognition only after written reasons, notice and an opportunity for that chapter to respond. A final closure proposal requires support from two-thirds of non-conflicted Active Chapter Presidents excluding the affected chapter, plus two-thirds of Club Voting Members voting at a normally quorate national Club meeting after at least twenty-one days' notice. Implementation must be within Association Committee authority. Urgent temporary restrictions to protect safety, funds or property must be reviewed within fourteen days and cannot be used as a disguised permanent closure.

17.3. A chapter is an internal division and cannot be separately dissolved as an incorporated entity. On closure, members are offered transfer, Nomad status or another fair internal outcome where practicable. Legal Association membership is not ended automatically. Funds, records, accounts, passwords, patches, vehicles and assets remain Association property and are transferred under the Association Committee's authority, coordinated by the NEC.

17.4. Voluntary winding up or cancellation of the Association follows Registered Rule 76 and applicable law, not an internal Club vote. Any required special resolution and asset-recipient decision must be made through the proper Association process. After liabilities, surplus assets are transferred to an eligible not-for-profit body with similar purposes and are not distributed to current or former members as personal profit.

17.5. Adoption of v4 follows the applicable internal process and the Association approvals required by the Registered Rules. Its new amendment clause does not authorise its own initial adoption. The adopting records must identify the exact version, approving bodies, votes, delegated authority and commencement date. Until then, existing valid internal rules and recorded decisions continue only to the extent consistent with the Registered Rules and law. On lawful commencement, recognised Club tenure, internal office terms, memberships, approved patches, records, property and lawful decisions continue except where the adopting resolution expressly and lawfully changes them. No historical legal appointment, vote or non-voting category is retrospectively validated by this document.

17.6. The recorded two-year internal terms beginning 1 August 2026 are preserved, subject to lawful vacancy or removal. They do not extend an Association Committee term beyond the election cycle in the Registered Rules. The existing authorised temporary Treasurer arrangement across both chapters continues with separate ledgers and the stronger approval control in clause 13.3. The adoption record must confirm legal officeholders and delegations, the legal basis of any associate categories, and practical commencement arrangements. New attendance interpretation applies prospectively, not as a new ground to penalise earlier conduct.

SCHEDULE 1 - VEST AND PATCH LAYOUT

This schedule supports Section 6. Written clauses control if a schematic is unclear. The original selected layout is retained; it shows zones and stacking, not approval of any particular patch artwork.

A. Front orientation and approved zones

Front Personal Side	Front Club Side
Viewer's left / wearer's right. Member-chosen personal patches, subject to clauses 6.3, 6.6 and 6.9. No prior Board approval.	Viewer's right / wearer's left. Club-issued identity, position and road-name patches; optional Club-issued ride patches at the bottom.

B. Front Club Side order

Order	Patch or status
1	Club membership patch and Chapter Compass Ring
2	Approved permanent Club title or recognised status
3	Current national position patch or patches
4	Current chapter position patch or patches
5	Approved road name
6	Optional Club-issued ride patches at the bottom

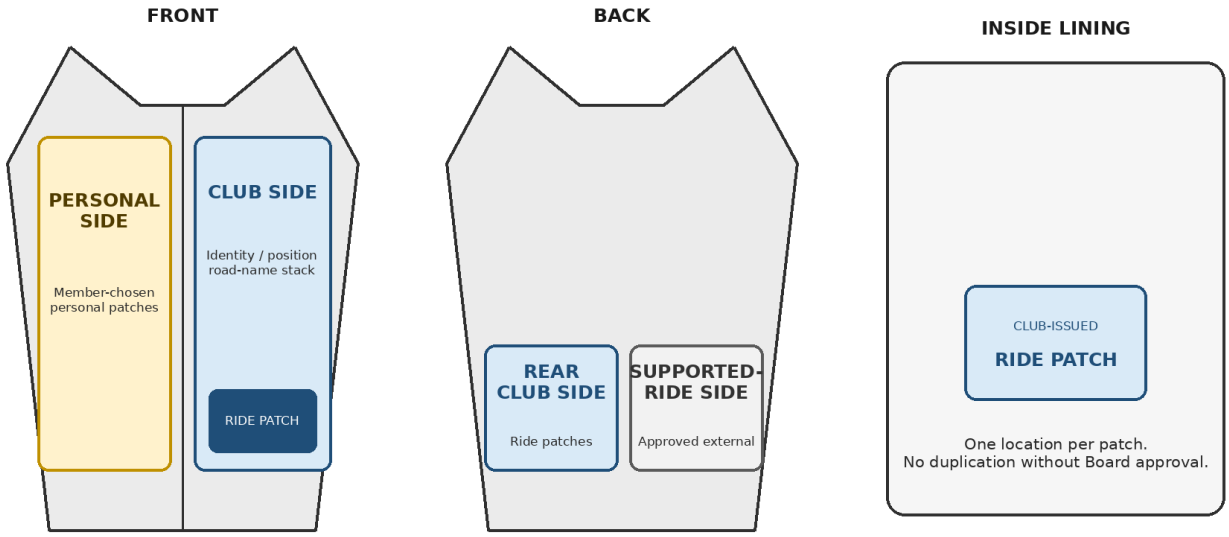
C. Ride-patch locations and the rear of the vest

A Club-issued ride, run, annual, charity or event patch may be placed at the bottom of the front Club Side, on the lower-left Rear Club Side, or inside the lining. The member chooses one location for each patch. Duplication needs specific Board approval.

The lower-right rear Supported-Ride Side is for approved external supported-ride, charity, club, organisation and community-event patches. Other motorcycle-club patches always require NEC approval; other external rear patches need Chapter Board approval. No other rear or inside patch is permitted without the approvals in clause 6.8.

D. Selected placement schematic

The diagram below is the original layout selected as Option A in the August record. Its old options banner has been cropped in the document; the placement artwork has not been redrawn.



SCHEMATIC — NOT TO SCALE. Written clauses control.

SCHEMATIC ONLY - NOT TO SCALE. Orientation is viewed directly from the front or back. Written clauses 6.2-6.8 control.

END OF VERSION 4 — FINAL CLUB EDITION

Club-approved internal bylaws. Keep this controlled copy with the Club's adoption resolution and supporting governance records. The Registered Rules remain unchanged.